11 EU Commission Recommendation 2014 478 Online Gambling

EU COMMISSION RECOMMENDATION 2014/478/EU

of 14 July 2014
on principles for the protection of consumers and players of online gambling services
and for the prevention of minors from gambling online

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THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union, and in particular Article 292 thereof,

Whereas:

(1) Online gambling services are widely available in the Union. The provision of online gambling services raises concerns regarding the protection of consumers and players, in particular minors and vulnerable persons.

(2) The protection of consumers, players and minors, the prevention of fraud and money laundering, and the preservation of the integrity of sport are overriding reasons of public interest which may justify restrictions on the freedom to provide online gambling services.

HAS ADOPTED THIS RECOMMENDATION:

I. PURPOSE AND SCOPE

1. This Recommendation sets out principles that Member States are invited to consider when reviewing or adopting their regulatory frameworks for online gambling services.

2. The principles aim to safeguard health and to protect consumers and players, including minors, of online gambling services.

II. DEFINITIONS

3. For the purposes of this Recommendation:
(a) 'online gambling services' means any service which involves wagering a stake with monetary value in games of chance, including lotteries and betting transactions that are provided by electronic means at the individual request of a recipient of services;
(b) 'gambling operator' means any natural or legal person that offers online gambling services;
(c) 'player account' means a personal account opened by a player with a gambling operator for the purpose of placing bets;
(d) 'player' means a natural person registered with a gambling operator.

III. INFORMATION REQUIREMENTS

4. Gambling operators should make easily accessible to players, before they register, the following information:
(a) the identity of the operator, including its trade name, registered address and contact details;
(b) the conditions for participation in gambling, including age restrictions;
(c) the rules of the game, including the odds of winning;
(d) the privacy policy;
(e) the terms and conditions applicable to bonuses and promotional offers.

IV. REGISTRATION AND PLAYER ACCOUNT

5. Gambling operators should implement registration procedures that:
(a) verify the identity of the player;
(b) verify the age of the player to ensure that minors cannot gamble;
(c) allow only one player account per player per operator;
(d) require the player to choose a username and password.

6. Gambling operators should verify the identity and age of the player before the player account is activated or at the latest before any winnings are paid out.

V. PLAYER ACTIVITY AND SUPPORT

7. Gambling operators should provide players with tools to help them keep their gambling under control:
(a) the possibility to set deposit limits (daily, weekly, monthly);
(b) the possibility to set time limits for gambling sessions;

(c) the possibility to set loss limits;
(d) alerts on the amount of time spent gambling and money spent;
(e) the possibility to temporarily suspend the player account (cooling-off period);
(f) the possibility to self-exclude from the gambling operator's services.

8. Gambling operators should provide players with a reality check at regular intervals during a gambling session, informing them of the time spent and money wagered.

9. Gambling operators should provide players with easy access to their transaction history.

10. Gambling operators should provide players with information about responsible gambling, including:
(a) a link to at least one organisation providing information and support regarding gambling disorders;
(b) a self-assessment test to help players assess their gambling behaviour.

VI. PROTECTION OF MINORS

11. Member States should ensure that:
(a) gambling operators verify the age of players;
(b) marketing communications for online gambling services do not target minors;
(c) gambling operators do not allow minors to open player accounts or place bets;
(d) parental control tools are promoted.

12. Marketing communications for online gambling services should not:
(a) be aimed at minors or feature minors;
(b) be broadcast during programmes aimed at minors;
(c) suggest that gambling is a rite of passage or a sign of maturity.

VII. COMMERCIAL COMMUNICATIONS

13. Marketing communications for online gambling services should:
(a) be easily identifiable as such;
(b) clearly identify the gambling operator;
(c) include a responsible gambling message;
(d) include information about age restrictions.

14. Marketing communications for online gambling services should not:
(a) suggest that gambling can be a source of income or a way to solve financial problems;
(b) suggest that skill can influence the outcome of games of chance;
(c) portray gambling as socially attractive;
(d) suggest that gambling enhances personal qualities;
(e) create a sense of urgency to gamble.

VIII. SPONSORSHIP

15. Sponsorship of events, activities, teams or individuals by gambling operators should:
(a) not be aimed at minors;
(b) include responsible gambling messaging;
(c) comply with the principles set out in Section VII.

IX. SUPERVISION AND ENFORCEMENT

16. Member States should designate competent regulatory authorities responsible for the supervision and enforcement of online gambling services.

17. Regulatory authorities should have adequate powers and resources to carry out their tasks effectively.

X. REPORTING

18. Member States are invited to notify the Commission of the measures taken in response to this Recommendation within 18 months of its publication.

Done at Brussels, 14 July 2014.
For the Commission
Michel BARNIER
Member of the Commission